

Waseem Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 May 2023 · 2023:AHC:104721-DB · Writ - C No. 11002 of 2023 · **Writ dismissed as infructuous after supply restored**

HEADNOTE

The Court accepted and recorded the Executive Engineer's undertaking that the petitioner's electricity supply would be restored within a week and that clause 6.9 of the U.P. Electricity Supply Code, 2005 would thereafter be complied to assess the load of the premises. After a compliance affidavit, the petitioner not disputing that the cause no longer survived, the writ was dismissed as infructuous.

FACTUAL SUMMARY

Waseem Ahmad petitioned the Allahabad High Court against the State of U.P. and the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Karelalbagh, Prayagraj, over electricity supply at Plot No. B-53, G.T.B. Nagar, Kareli. After two fresh listings, counsel for the Executive Engineer told the Court on 2 May 2023 that supply would be restored within a week and the load of the premises assessed. On 15 May 2023 a compliance affidavit was filed, and the petitioner did not dispute that the cause had ended.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

restoration and load assessment

HOLDING

The licensee's undertaking that electricity supply would be restored within a week was accepted and recorded, and the Court recorded that clause 6.9 of the U.P. Electricity Supply Code, 2005 would thereafter be complied to assess the load of the premises at Plot No. B-53, G.T.B. Nagar, Kareli, Prayagraj. ¶ 1-3

PRINCIPLE TAGS

clause-6.9-representation-time-bound-decision After accepting the undertaking to restore supply within a week, the Court recorded that clause 6.9 would be complied to assess the load of the premises, without itself making the assessment. ¶ 3